

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

LAFAYETTE COUNTY
FILED

PLAINTIFF

V.

JUL 05 2022

No. LK22-MISC

MATTHEW REARDON

JEFF BUSBY
CIRCUIT CLERK
BY: D.C.

DEFENDANT

**MOTION TO DISMISS CRIMINAL AFFIDAVIT AND
RESPONSE TO MOTION TO REVOKE AND DENY BOND
AND HOLD DEFENDANT UNTIL HEARING ON THE SAME**

COMES NOW Matthew Reardon, by and through court-appointed counsel, and responds to the above-referenced motion, as follows:

1. This Court is familiar with Matthew Reardon and knows that in the nearly ten years of dealing with him that he has never engaged in any violent conduct whatsoever. He has never committed an act of violence, never been charged with a violent crime, nor ever been accused of committing an act of violence.

2. The present matter involves Mr. Reardon's arrest for being on the premises of Oxford City Hall. Mr. Reardon is well-known to be a citizen journalist and numerous people, including local law enforcement, follow his citizen journalism on and through social media. "First Amendment Audits" are a growing trend among citizen journalist wherein they exercise their constitutional right to access public spaces and take video recordings in those spaces as allowed by the Constitution. (See Wikipedia on First Amendment Audits attached hereto as Exhibit "A"). Mr. Reardon has previously engaged in several First Amendment Audits and has posted those Audits on social media.

3. Mr. Reardon was conducting a First Amendment Audit of the Oxford City Hall's publicly accessible premises when he is alleged to have been stalking the Oxford Mayor. The

video will show that he was taking no action toward any person. Mr. Reardon did not ask to see any particular person nor did he try to access any private space such as an office. His only physical action was his presence alone, action protected by the Constitution.

4. It took law enforcement over a week to decide if Mr. Reardon should even be charged with a crime. If Mr. Reardon's actions evidenced the sort of imminent, serious danger that disqualifies and arrestee from bond, it would not have taken a week to decide probable cause. Individuals accused of murder, rape, robbery with a deadly weapon and other violent crimes that supported by eyewitness testimony and followed by immediate arrest are routinely offered bond. This case is a far cry from even those bondable offenses, much less the offenses where bond is denied by this Court. Even if Mr. Reardon's presence at City Hall constitutes probable cause for the charge of Aggravated Stalking, there is nothing about this situation that warrants holding him without bond.

5. Counsel for Mr. Reardon is unaware of any other case where denial of bond has been sought by the District Attorney's office in situations where there has been no violence, no threat of violence, no injury, no weapon and where probable cause for felony arrest was so debatable that it took eight days to pull the trigger on arrest.

6. The constitutional presumption of innocence commands the right to bail on the least onerous conditions, and the federal constitutional right to Pre-Trial Release is guaranteed also in every state constitution. Under M.R.C.P. Rule 8.2(a), Mr. Reardon can be denied release only if his "being at large will pose a real and present danger to others or to the public at large." Mr. Reardon has never posed and does not pose a "danger" to anyone. Herein, no threats were made. There was no personal contact. There was no action during the First Amended Audit directed toward the Mayor.

7. Further, M.R.C.P. Rule 8.2(a) requires release even when a “danger” exists. The Court is required to release the defendant and impose “the least onerous conditions contained in Rule 8.4 that will reasonably assure the defendant’s appearance or that will eliminate or minimize the risk of harm to others or the public at large.” If there is any risk of danger, that risk can be eliminated by Rule 8.4 conditions.

8. Holding Mr. Reardon without bond will violate his constitutional rights, including, but not limited to, his liberty rights, presumption of innocence, the prohibition of cruel and unusual punishment, the prohibition of punishment by or with pretrial detention, substantive and procedural due process rights, and other constitutional rights implicated by confining him for conduct that was so benign it took a week for law enforcement and the District Attorney to decide to charge him with a felony offense at all. Where the initial bond was set at \$10,000.00 and no contact, the court is likely just as appalled by the State’s request to deny bond as Mr. Reardon is and should dispose it and the request by denial and dismissal at the felony arrest at Preliminary Hearing.

9. Mr. Reardon respectfully requests that the District Attorney’s Motion be denied and that the arrest be dismissed. In the alternative, he requests that he be released on his own recognizance subject to any conditions or limitations the Court may order to eliminate any concern the Court has about his conduct during release.

WHEREFORE, PREMISES CONSIDERED, Matthew Reardon, by and through court-appointed counsel, requests the relief identified above and for any further relief that the Court deems appropriate.

RESPECTFULLY SUBMITTED, this the 5th day of July, 2022.

MATTHEW REARDON

BY: /s/Mitchell O. Driskell, III
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CERTIFICATE OF SERVICE

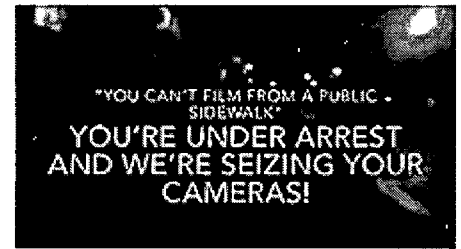
I, Mitchell O. Driskell, III do hereby certify that I have this day served a true and correct copy of the foregoing Motion by U. S. Mail First Class Postage Prepaid and/or by electronic mail to:

Tiffany Kilpatrick, Esq.
Assistant District Attorney
Third Circuit, State of Mississippi
1301 Monroe Avenue
Oxford, MS 38655

/s/Mitchell O. Driskell, III
MITCHELL O. DRISKELL, III

First Amendment audits

First Amendment audits are a largely American social movement that usually involves photographing or filming from a public space. It is often categorized by its practitioners, known as auditors, as activism and citizen journalism that tests constitutional rights;^[1] in particular the right to photograph and video record in a public space.^{[2][3]} Auditors believe that the movement promotes transparency and open government.^[4] However, critics argue that audits are often confrontational in nature, as auditors often refuse to self-identify or explain their activities.^{[5][6]} Some auditors have also been known to enter public buildings asserting that they have a legal right to openly carry firearms, leading to accusations that auditors are engaged in intimidation, terrorism, and the sovereign citizen movement.^{[7][8][9]}



Thumbnail of a First Amendment audit video on YouTube

Auditors tend to film or photograph government buildings, equipment, access control points and sensitive areas, as well as recording law enforcement or military personnel present.^[10] Auditors have been detained, arrested, assaulted, had camera equipment confiscated, weapons aimed at them, had their homes raided by a SWAT team, and been shot for video recording in a public place.^{[11][12][13][14][15][16]} Such events have prompted police officials to release information on the proper methods of handling such an activity.^{[17][18]} For example, a document sponsored by the International Association of Chiefs of Police states that the use of a recording device alone is not grounds for arrest, unless other laws are violated.^[19]

The practice is predominantly an American concept, but it has also been seen in other countries including the United Kingdom,^{[20][21]} Canada, and India.

Contents

Behavior

Legality

Controversy

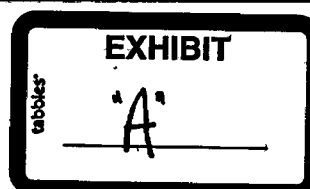
Intimidation

Profanity

Goal

References

Behavior



Auditors typically travel to a place that is considered a public place as a sidewalk or public right-of-way, or a place open to the public, such as a post office or government building, and visibly and openly photograph and record buildings and persons in their view.^[22]

In the case of sidewalk or easement audits, the conflict arises when a property owner or manager states, in substance, that photography of their property is not allowed. Sometimes, auditors will tell property owners upon questioning that they are photographing or recording for a story, they are photographing or recording for their "personal use", or sometimes auditors do not answer questions.^{[23][24]} Frequently, local law enforcement is called and the auditor is sometimes reported as a suspicious person and are often also identified as having been on private property. Some officers will approach the auditors and request his or her identification and an explanation of their conduct. Almost universally, auditors will invoke the 4th Amendment with the belief that they are not required to identify themselves unless witnessed having just committed a crime. They quote the relevant law to the officer as the basis for their refusal to identify.^{[6][25]} This sometimes results in officers arresting auditors for failing to identify themselves, obstruction of justice, disorderly conduct, or any potential or perceived crime that could potentially be justified by the occasion.^{[26][27]}

Legality

The legality of recording in public was first clearly established in the United States following the case of *Glik v. Cunniffe*,^[28] which confirmed that restricting a person's right to film in public would violate their First and Fourth amendment rights. As the 7th Circuit Federal Court of Appeals explained in *ACLU v. Alvarez*, "[t]he act of making an audio or audiovisual recording is necessarily included within the First Amendment's guarantee of speech and press rights as a corollary of the right to disseminate the resulting recording. The right to publish or broadcast an audio or audiovisual recording would be insecure, or largely ineffective, if the antecedent act of making the recording is wholly unprotected."^{[29][30]} However, the legality of the auditors' actions beyond mere filming are frequently subject to debate. As long as the auditor remains in a public place where they are legally allowed to be, they have the right to record anything in plain view, subject to very limited time, place, and manner restrictions.^{[31][32]}

Some auditors occasionally yell insults, derogatory language, and vulgarities at police officers who attempt to stop them from recording or improperly demand identification.^[10] Police will sometimes charge auditors with disorderly conduct when they engage in behavior that could be considered unlawful. For example, an auditor in San Antonio was prosecuted and convicted of disorderly conduct after an audit.^[33] After the trial, the Chief of Police for the City of San Antonio stated "[the verdict] puts a dagger in the heart of their First Amendment excuse for insulting police officers..."^[34] Despite the San Antonio Police Chief's statement, insulting the police is consistently treated as constitutionally protected speech.^{[35][36][37]} In *State of Washington v. Marc D. Montgomery*, a 15-year-old successfully won an appeal overturning his convictions for disorderly conduct and possession of marijuana on the grounds of free speech. Montgomery was arrested after shouting obscenities, such as "fucking pigs, fucking pig ass hole" at two police officers passing in their patrol car. Citing *Cohen v. California*, the Court ruled that Montgomery's words could not be classified as fighting words, and restricting speech based merely on its offensiveness would result in a "substantial risk of suppressing ideas in the process."^[38]

The rights exercised in a typical audit are freedom of speech and freedom of the press in the First Amendment, freedom from unreasonable searches and seizures in the Fourth Amendment, and the right to remain silent in the Fifth Amendment of the United States Constitution.

Auditors' ~~State~~ Cate 36 Cl 10 22 cc 03 10 KE is Document # 4 File d: 07/05/2022 Page 10 of 12 right to stop and identify a person in public while avoiding committing any crime. The reason for this stems from the Supreme Court's decision in Terry v. Ohio which held that it was not a violation of the Fourth Amendment to detain someone when the officer has reasonable articulable suspicion that crime is "afoot". Further, following the Supreme Court's decision in Hiibel v. Sixth Judicial District Court of Nevada, the Court held that in States that have stop and identify statutes, a person may be required to provide their name to an officer who has reasonable articulable suspicion that the person has committed, is committing, or is about to commit a crime.

The conflict with law enforcement officers generally arises because officers sometimes deem photography, in and of itself, "suspicious behavior" and use that as a reason to detain an Auditor and demand identification. Universally, Courts that have reviewed this specific issue have held that the fact that a person takes a photograph or makes an audio or video recording in a public place or in a place he or she has the right to be, does not constitute, in and of itself, a reasonable suspicion to detain the person, probable cause to arrest the person, or a sufficient justification to demand identification. Some states have even revised their penal code to reflect that issue.^[39] Nonetheless, officers frequently detain or arrest auditors for "suspicious behavior".^{[40][41]}

One of the main problems that auditors face in subsequent lawsuits are the Supreme Court's decisions in *Harlow v. Fitzgerald*, and *Anderson v. Creighton*, which held that government officials, including officers, would be shielded from liability and damages as long as their conduct does not violate "clearly established statutory or constitutional rights".^[42] Therefore, while a Fourth Amendment seizure claim might exist for an auditor who stood on a public sidewalk and took pictures of a police station only to be handcuffed and placed in the back of a patrol car, a First Amendment claim would be dismissed because although a violation occurred, it was not "clearly established".^[43] Qualified immunity allows "all but the plainly incompetent or those who knowingly violate the law" to escape liability for egregious and obvious violations of civil rights.^[44] So far the 1st, 3rd,^[45] 5th, 7th,^[46] 9th,^[47] and 11th^[48] Circuits have held that recording the police in the course of their official duties is a clearly established right.

Controversy

Intimidation

Auditing can be controversial due to the confrontational tactics of some auditors, which some may see as intimidation or harassment.^[49] In addition, many public employees are not familiar with handling people walking around silently recording their interactions. While the conduct is generally legal, such activity may cause some people to feel alarmed. Some auditors cite independent research into relevant laws, pointing out that they are currently being recorded by cameras in the building, or by stating that there is no expectation of privacy in public.

Profanity

Audits are even more confrontational when aggressive auditors engage in verbal disputes with government employees. Some auditors may use profane language during an audit. Some may confuse obsenity for profanity, and while the latter is generally protected by the first amendment, the right to engage in a verbal dispute depends highly on the circumstances. While on public streets, parks, or

sidewalks, the right to free speech is at its highest, as one with a traditional public forum. However, in limited public forums, such as public buildings, meeting rooms, and other public lobbies, the right to free speech may be more limited.

Goal

One auditor stated that the goal of an audit is to "put yourself in places where you know chances are the cops are going to be called. Are they going to uphold the constitution, uphold the law ... or break the law?"^[50] Auditors state that they seek to educate the public that photography is not a crime, while publicizing cases where officers illegally stop what is perceived as illegal conduct.^{[51][52]}

An auditor selects a public facility and then films the entire encounter with staff and customers alike. If no confrontation or attempt to stop the filming occurs, then the facility passes the audit;^[53] if an employee attempts to stop a filming event, it fails the audit.^[54]

Some auditors are concerned that if officers are willing to harass, detain, and arrest auditors, who intentionally avoid doing anything that might be considered a crime, normal citizens might shy away from recording officers for fear of retaliation.^{[55][56]} In 2017, Justice Jacques Wiener of the U.S. Court of Appeals for the 5th Circuit wrote a federal appeals decision in favor of an auditor who was detained for filming police officers; "Filming the police contributes to the public's ability to hold the police accountable, ensure that police officers are not abusing their power, and make informed decisions about police policy."^[6]

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